HILCHOT SEFIRAT HAOMER AND SHAVUOT — SHULHAN ARUKH

When Can You Count the Omer? Earliest Times, Eating Before & Friday Nights

Siman 489 Pt. 2

Recap of Class 1

Topic	Key Point
The Omer sacrifice	Night of 16th Nisan: harvest barley → grind → morning: Kohen waves an Omer measure → takes kometz → burns on Mizbeach. From then, new produce permitted.
De'oraita or de-rabbanan?	Rambam: de'oraita even nowadays. Rosh/Ran (majority): de-rabbanan (counting linked to sacrifice). Shulchan Aruch: de-rabbanan.
Why count upward?	Each day has intrinsic value — building toward Shavuot, not passively waiting.
Why no Shehecheyanu?	(1) Sadness — only a remembrance without the Temple. (2) Hechsher mitzvah — Shehecheyanu on Shavuot covers it.
La-Omer vs. Ba-Omer	Sephardim: la-Omer (from the Omer sacrifice). Ashkenazim: ba-Omer (in the Omer period). Neither is me'akev.
When to count	Best: nightfall. Valid: from sunset (de-rabbanan, so bein ha-shmashot is fine). After Arvit, unless Arvit is very late.
Women	Exempt (time-bound). Sephardim: count without bracha. Ashkenazim: divided.
Must understand the count	Unique to Omer — if you don't understand the Hebrew numbers, count in English.
Why no double counting	Unclear counting = not a counting at all. Calendrical doubt only observed when it doesn't impair another mitzvah.

Siman 489 (Continued)

Se'ifim 2–3 — The Earliest Time to Count: A Detailed Analysis

These se'ifim form one connected sugya about the earliest permissible time for counting the Omer.

Se'if 2 — The Cloudy Day Case (The Rashba)

Shulchan Aruch (quoting the Rashba): If it was a cloudy day and people mistakenly counted the Omer thinking it was already nightfall — they must **recount** (chozrim li-spor) when it actually gets dark.

Additionally: "U-medakdekim einam sofrim ad tzeit ha-kochavim, ve-chein ra'ui la'asot" — meticulous people don't count until nightfall, and so is the fitting practice.

Understanding the Rashba's Case

Three time windows in the evening:

Window	Status
Before Plag HaMincha (~1.25 halachic hours before sunset)	Too early for any nighttime mitzvah — counting here is meaningless for everyone
After Plag HaMincha, before sunset	Disputed — see below
After sunset, before nightfall (bein ha-shmashot)	Valid le-chatchila (Omer is de-rabbanan → safek de-rabbanan le-kula)
After nightfall (tzeit ha-kochavim)	Best practice — satisfies even the Rambam (de'oraita)

What exactly happened in the Rashba's case? They thought it was nightfall, but it was actually only **after Plag HaMincha, before sunset**. We know this because:

- If it were before Plag HaMincha → the Rashba wouldn't need to say anything; it's obviously meaningless.
- If it were after sunset → the Shulchan Aruch holds you **can** count from sunset (de-rabbanan); there'd be no need to recount.
- The Rashba also says: don't repeat Arvit (because Arvit after Plag is valid), **but** repeat the Omer. This only makes sense if the mistake was counting after Plag but before sunset.

Conclusion from Se'if 2:

- Counting after Plag HaMincha but before sunset → must recount when it gets dark.
- Counting after sunset → valid (me'ikar ha-din).
- Counting after nightfall → best practice (medakdekim).

Se'if 3 — Counting with the Community "Mibe'od Yom"

Shulchan Aruch: If you are praying with the community "mibe'od yom" (while it is still day) — count with them **without a bracha**. If you remember later at night, say the bracha and recount.

Rama adds: Even if you answered amen to the community's bracha on the Omer — if you intended **not** to fulfill the mitzvah (da'ato shelo latzeit), you should repeat with a bracha at night.

The Major Dispute: What Does "Mibe'od Yom" Mean?

Two readings among the Acharonim, with major practical consequences:

Reading 1 — The Vilna Gaon, Taz, Pri Megadim, Magen Avraham:

"Mibe'od yom" = **from sunset** (not its usual meaning).

They are forced to this reading because: if it meant from Plag HaMincha, there'd be no value in counting at all (since Se'if 2 shows counting before sunset is worthless). So the Shulchan Aruch must be talking about counting from sunset — a valid but non-ideal time.

What comes out: Counting from Plag HaMincha is **absolutely nothing**. Count from sunset le-chatchila (valid), best from nightfall. If in a community counting from sunset, count without bracha and stipulate: "This only counts if I forget later."

Reading 2 — Maamar Mordechai, Eliyahu Rabbah, other Acharonim:

"Mibe'od yom" = its normal meaning = **from Plag HaMincha**.

The Shulchan Aruch is addressing communities in the northern hemisphere that adopted counting from Plag HaMincha because nightfall was so late people would forget. Although not ideal, there **is** some value to counting after Plag — a minority opinion supports it.

What comes out: Counting from Plag is extremely be-di'avad but not worthless. You shouldn't do it with a bracha, but it has some value as a fallback.

The Major Nafka Mina (Practical Difference)

Scenario	Reading 1 (Vilna Gaon)	Reading 2 (Maamar Mordechai)
Counted after Plag, before sunset, then forgot to recount at night	Counting was worthless. Missed a full day. Cannot continue with bracha next night.	Counting has some value. Can continue with bracha next night.
Se'if 2 — recount on cloudy day with bracha?	Yes — with bracha. What you counted from Plag was nothing.	No — without bracha. There's safek whether the Plag counting had value.

Final Halacha (Kaf HaChaim, Rav Ovadia)

Rule	Details
Le-chatchila	Do **not** count before sunset with a bracha.
If you counted from Plag with a bracha	Do not repeat the bracha later (safek berachot le-hakel). But **do** repeat the counting without a bracha after sunset/nightfall.
If you counted from Plag and forgot to recount all day	You **can** continue counting subsequent nights with a bracha — relying on the opinion that Plag counting has some value.
In a community counting from Plag	Count with them **without** a bracha. Stipulate: "This only counts if I forget later." If you remember at night — count with bracha.

Practical Summary of Earliest Times

Time	Status
Before Plag HaMincha	Meaningless. Not a counting at all.
After Plag HaMincha, before sunset	Extremely be-di'avad. No bracha. Only as emergency fallback.
After sunset (bein ha-shmashot)	Valid **le-chatchila**. Me'ikar ha-din this is fine.
After nightfall (tzeit ha-kochavim)	**Best** practice — satisfies even the Rambam.

Se'if 4 — Being Asked "What Night Is It?"

Shulchan Aruch: If someone asks you during bein ha-shmashot (twilight), "What night of the Omer is it tonight?" — you should answer: **"Yesterday was X."**

Why? Because if you say "Tonight is 26" — you have effectively counted, and you can no longer recount with a bracha.

However — before bein ha-shmashot (before sunset): You can freely say what tonight's count will be. Since it's not yet the time of counting, it means nothing halachically.

Practical Workaround

If asked after sunset and you haven't yet counted, you can say **just the number** without "tonight" or "hayom":

- ✅ "26" — just a number, not a counting.
- ❌ "Tonight is 26" or "Hayom 26 yom" — this is a counting.

Why does saying "26" work? A counting requires a statement that tonight/today is X days. A bare number in response to a question, without "tonight" or "hayom," doesn't constitute a formal count — even if you say "la-Omer" or "ba-Omer" after the number.

Se'if 4 (Rama) — Eating Before Counting

Rama: Once the time to count has arrived, it is **forbidden to eat** until you have counted.

Three scenarios:

Scenario	Ruling
Began eating before the time arrived (e.g., started Shabbat meal before sunset)	✅ Continue eating. Finish the meal, say Birkat HaMazon, then count. No need to interrupt.
The time arrived and you haven't begun eating yet	❌ Do not begin. Count first, then eat.
Began eating after the time arrived (shouldn't have, but did)	Stop eating. Count. Then continue eating.

What Counts as "The Time"?

Opinion	"The Time" Is...
Mishnah Berurah	Nightfall. So you can begin eating between sunset and nightfall.
Chacham Ovadia	Sunset. Even from sunset you cannot begin eating.

Additional stringency (Mishnah Berurah): Even half an hour before the time of counting, you shouldn't begin a meal — similar to bedikat chametz. In practice, this means about half an hour before nightfall (which usually falls around sunset).

Friday Night Application (Most Practically Relevant)

This is when people forget the Omer most — especially in London/England.

Typical scenario: Pray Mincha-Arvit at 7:00 PM. Get home around 8:00. Sunset is 8:34. You start Shalom Aleichem, Eshet Chayil, blessings for children, Kiddush — all before sunset. Then begin the meal.

The halacha: Since you began eating before sunset (before the time), you can continue your meal through nightfall without interrupting. Count after Birkat HaMazon.

Note: "Eating" means sitting down with bread (a formal meal). Kiddush, Shalom Aleichem, the blessings — these are not "eating." You can do all of these even after the time arrives, then count, then wash and begin the meal.

The Friday Night Eitzah (Practical Advice)

If you frequently forget to count on Friday nights (no phone reminder):

After Arvit in synagogue on Friday evening (still before sunset), say to yourself: "I am now counting the Omer for tonight — **without a bracha** — and this counting should only be valid if I forget to count later tonight."

- If you remember later → count with a bracha (the earlier counting was stipulated as nothing).
- If you forget → at least you counted from after Plag HaMincha, and you can continue counting with a bracha on subsequent nights (per the second opinion).

Se'if 5 — Not Knowing What Night It Is

Shulchan Aruch: If you don't know what night it is, you can say the bracha intending to hear the count from your friend and repeat after him. You listen, he counts, you repeat — **yatza** (fulfilled the mitzvah).

However — le-chatchila you should not do this. Two reasons:

Reason	Source
Hefsek (interruption): There will be a pause between your bracha and your counting (while you wait to hear your friend)	General concern
Must know the count during the bracha (stronger reason): When saying the bracha, you should already know what you're blessing for — not just "Omer" generically, but which specific night	The Taz

Practical takeaway: Before saying the bracha, make sure you know what night it is. If you're unsure — ask first ("Yesterday was...?"), then count.

Se'if 6 — Wrong Night in Mind During the Bracha

Shulchan Aruch: Two scenarios:

Scenario A: Wrong intention → correct counting

You began the bracha thinking tonight is 4 (wrong). By the time you finished and actually counted, you realized it's 5 and counted 5.

Ruling: Yatza — you've fulfilled the mitzvah. No need to repeat. At the end of the day, you counted correctly.

Scenario B: Correct intention → wrong counting

You began the bracha correctly thinking tonight is 4 (correct). But when you actually counted, you mistakenly said 5.

Shulchan Aruch says: Eino chozer u-mevarech — you don't need to repeat the bracha.

Almost all Acharonim disagree with this ruling. How can you not repeat? You counted the wrong night! Of course you need to recount with a bracha.

The Taz's Reading (Resolving the Difficulty)

The Taz reinterprets Scenario B. He says the Shulchan Aruch means:

- You began the bracha thinking tonight is 4 (correct).
- You **finished the bracha** still thinking correctly (tonight is 4).
- But then you **miscounted** and said 5.
- Since **during the bracha itself** your intention was correct throughout, the bracha stands. Just recount the correct number without a new bracha.

On the Taz's reading: If the **entire bracha** from beginning to end was said with the **wrong** night in mind → the bracha is wasted and must be repeated.

What Comes Out for Practice

During the Bracha	At the Count	Must Repeat Bracha?
Part of bracha had wrong night, part had right night	Counted correctly	❌ No — bracha valid
Part of bracha had wrong night, part had right night	Counted wrong	Recount correctly, no new bracha needed
Entire bracha had wrong night	Counted correctly	❌ No — the correct counting saves it (majority opinion)
Entire bracha had wrong night	Counted wrong	✅ Yes — must repeat bracha and recount (Taz)

Le-chatchila: Always have the correct night in mind when saying the bracha. If unsure — better to have **no** specific intention than the **wrong** intention.

Summary of Key Practical Rulings

Topic	Ruling
Earliest time	Sunset le-chatchila. Nightfall is best (medakdekim). Plag HaMincha only as extreme fallback without bracha.
If asked "what night?"	After sunset: say "yesterday was X" or just the number without "tonight." Before sunset: say freely.
Eating before counting	Don't begin eating once the time arrives. If already eating from before: continue, count after Birkat HaMazon.
Friday nights	Start meal before sunset → finish → count after bentching. Safety net: count without bracha after Arvit with a tenai.
Don't know what night	Ask first, then count. Le-chatchila: know the night before the bracha.
Wrong night in mind	If counted correctly at the end: fine. If counted wrong: must recount. Whole bracha with wrong intention: problematic (Taz).

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